

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

COMMITTEE SUBSTITUTE
FOR ENGROSSED
SENATE BILL NO. 2182

By: Howard of the Senate

and

Moore of the House

COMMITTEE SUBSTITUTE

An Act relating to civil remedies; creating the Uniform Civil Remedies for Unauthorized Disclosure of Intimate Images Act; defining terms; authorizing cause of action for the intentional disclosure or threatened disclosure of an intimate image without the depicted individual's consent; limiting use of prior consent; providing for a reasonable expectation of privacy under certain circumstances; defining terms; establishing the burden of proof for the disclosing party to not be found liable under this act; excluding from liability defendants who are parents, legal guardians, or individuals with legal custody of a child unless plaintiff meets certain burden of proof; prohibiting a finding of public concern or public interest solely based on the depicted individual being a public figure; excluding certain data providers from being liable unless the provider had actual knowledge the specific content constitutes an intimate image disclosed without consent and failed to remove or disable access to the content; authorizing the exclusion or redaction of identifying characteristics of the plaintiff in court proceedings; providing for recovery of damages by prevailing plaintiff; authorizing the court to award a prevailing plaintiff reasonable attorney fees and costs and other additional relief including injunctive relief; providing a statute of limitations

1 of four years for actions brought under this act;
2 applying tolling statutes; tolling actions for
3 depicted individuals who are minors on the date of
disclosure or threatened disclosure; construing
provisions; providing for codification; and providing
an effective date.

6 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

7 SECTION 1. NEW LAW A new section of law to be codified
8 in the Oklahoma Statutes as Section 1121 of Title 12, unless there
9 is created a duplication in numbering, reads as follows:

10 This act shall be known and may be cited as the "Uniform Civil
11 Remedies for Unauthorized Disclosure of Intimate Images Act".

12 SECTION 2. NEW LAW A new section of law to be codified
13 in the Oklahoma Statutes as Section 1122 of Title 12, unless there
14 is created a duplication in numbering, reads as follows:

15 As used in this act:

16 1. "Consent" means affirmative, conscious, and voluntary
17 authorization by an individual with legal capacity to give
18 authorization;

19 2. "Depicted individual" means an individual whose body is
20 shown in whole or in part in an intimate image;

21 3. "Disclose" or "disclosure" means transfer, publication, or
22 distribution to another person;

23 4. "Identifiable" means recognizable by a person other than the
24 depicted individual:

1 a. from an intimate image itself, or

2 b. from an intimate image and identifying characteristic
3 displayed in connection with the intimate image;

4 5. "Identifying characteristic" means information that may be
5 used to identify a depicted individual;

6 6. "Individual" means a human being;

7 7. "Intimate image" means a photograph, film, video recording,
8 or other similar medium that shows:

9 a. the uncovered genitals, pubic area, anus, or female
10 post-pubescent nipple of a depicted individual, or

11 b. a depicted individual engaging in or being subjected
12 to sexual conduct;

13 8. "Person" means an individual, estate, business or nonprofit
14 entity, public corporation, government or governmental subdivision,
15 agency, or instrumentality, or other legal entity; and

16 9. "Sexual conduct" includes:

17 a. masturbation,

18 b. genital, anal, or oral sexual intercourse,

19 c. sexual penetration of, or with, an object,

20 d. bestiality, or

21 e. the transfer of semen onto a depicted individual.

22 SECTION 3. NEW LAW A new section of law to be codified
23 in the Oklahoma Statutes as Section 1123 of Title 12, unless there
24 is created a duplication in numbering, reads as follows:

1 A. As used in this section:

2 1. "Harm" includes physical harm, economic harm, and emotional
3 distress whether or not accompanied by physical or economic harm;
4 and

5 2. "Private" means:

6 a. created or obtained under circumstances in which a
7 depicted individual had a reasonable expectation of
8 privacy, or

9 b. made accessible through theft, bribery, extortion,
10 fraud, false pretenses, voyeurism, or exceeding
11 authorized access to an account, message, file,
12 device, resource, or property.

13 B. Except as otherwise provided in Section 4 of this act, a
14 depicted individual who is identifiable and who suffers harm from a
15 person's intentional disclosure or threatened disclosure of an
16 intimate image that was private without the depicted individual's
17 consent shall have a cause of action against the person if the
18 person knew that the content was of the type prohibited.

19 C. Consent to creation of the image or previous consensual
20 disclosure of the image by a depicted individual shall not establish
21 by itself that the individual consented to the disclosure of the
22 intimate image that is the subject of an action under this act or
23 that the individual lacked a reasonable expectation of privacy.

1 D. A depicted individual who does not consent to the sexual
2 conduct or uncovering of the part of the body depicted in an
3 intimate image of the individual shall retain a reasonable
4 expectation of privacy even if the image was created when the
5 individual was in a public place.

6 SECTION 4. NEW LAW A new section of law to be codified
7 in the Oklahoma Statutes as Section 1124 of Title 12, unless there
8 is created a duplication in numbering, reads as follows:

9 A. As used in this section:

10 1. "Child" means an unemancipated individual who is less than
11 eighteen (18) years of age; and

12 2. "Parent" means an individual recognized as a parent under
13 the laws of this state.

14 B. A person shall not be liable under this act if the person
15 proves that disclosure of, or a threat to disclose, an intimate
16 image was:

17 1. Made in good faith:

- 18 a. to law enforcement,
- 19 b. in a legal proceeding, or
- 20 c. during medical education or treatment;

21 2. Made in good faith in the reporting or investigation of:

- 22 a. unlawful conduct, or
- 23 b. unsolicited and unwelcome conduct;

24 3. Related to a matter of public concern or public interest; or

1 4. Reasonably intended to assist the depicted individual.

2 C. Subject to subsection D of this section, a defendant who is
3 a parent, legal guardian, or individual with legal custody of a
4 child shall not be liable under this act for a disclosure or
5 threatened disclosure of an intimate image of the child.

6 D. If a defendant asserts an exception to liability under
7 subsection C of this section, the exception shall not apply if the
8 plaintiff proves the disclosure was:

9 1. Prohibited by law; or

10 2. Made for the purpose of sexual arousal, sexual
11 gratification, humiliation, degradation, or monetary or commercial
12 gain.

13 E. Disclosure of, or a threat to disclose, an intimate image
14 shall not be a matter of public concern or public interest solely
15 because the depicted individual is a public figure.

16 F. A provider of cloud computing, data storage, web hosting, or
17 other infrastructure services shall not be liable under this act
18 solely by reason of providing such services to a person who
19 discloses or threatens to disclose an intimate image, provided that
20 the provider:

21 1. Does not have actual knowledge that the specific content
22 constitutes an intimate image disclosed without consent under this
23 act; or
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1 2. Upon obtaining actual knowledge of such content, acts
2 expeditiously to remove or disable access to the content.

3 SECTION 5. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 1125 of Title 12, unless there
5 is created a duplication in numbering, reads as follows:

6 In a cause of action filed pursuant to this act:

7 1. The court may exclude or redact from all pleadings and
8 documents filed in the action other identifying characteristics of
9 the plaintiff;

10 2. A plaintiff to whom paragraph 1 of this section applies
11 shall file with the court and serve on the defendant a confidential
12 information form that includes the excluded or redacted plaintiff's
13 name and other identifying characteristics; and

14 3. The court may make further orders as necessary to protect
15 the identity and privacy of a plaintiff.

16 SECTION 6. NEW LAW A new section of law to be codified
17 in the Oklahoma Statutes as Section 1126 of Title 12, unless there
18 is created a duplication in numbering, reads as follows:

19 A. In a cause of action filed pursuant to this act, a
20 prevailing plaintiff may recover:

21 1. The greater of:

22 a. economic and noneconomic damages proximately caused by
23 the defendant's disclosure or threatened disclosure,
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1 including damages for emotional distress whether or
2 not accompanied by other damages, or

3 b. statutory damages not to exceed Ten Thousand Dollars
4 (\$10,000.00) against each defendant found liable under
5 this act for all disclosures and threatened
6 disclosures by the defendant of which the plaintiff
7 knew or reasonably should have known when filing the
8 action or which became known during the pendency of
9 the action. In determining the amount of statutory
10 damages under this subparagraph, consideration shall
11 be given to the age of the parties at the time of the
12 disclosure or threatened disclosure, the number of
13 disclosures or threatened disclosures made by the
14 defendant, the breadth of distribution of the image by
15 the defendant, and other exacerbating or mitigating
16 factors;

17 2. An amount equal to any monetary gain made by the defendant
18 from disclosure of the intimate image; and

19 3. Punitive damages as allowed under law of this state other
20 than this act.

21 B. In a cause of action filed pursuant to this act, the court
22 may award a prevailing plaintiff:

23 1. Reasonable attorney fees and costs; and

24 2. Additional relief, including injunctive relief.

1 C. This act shall not affect any other right or remedy
2 available under the laws of this state.

3 SECTION 7. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 1127 of Title 12, unless there
5 is created a duplication in numbering, reads as follows:

6 A. An action authorized by subsection B of Section 3 of this
7 act for:

8 1. An unauthorized disclosure may not be brought later than
9 four (4) years from the date the disclosure was discovered or should
10 have been discovered with the exercise of reasonable diligence; and

11 2. A threat to disclose may not be brought later than four (4)
12 years from the date of the threat to disclose was made.

13 B. Except as otherwise provided in subsection C of this
14 section, this section shall be subject to the tolling statutes of
15 this state.

16 C. In an action under subsection B of Section 3 of this act by
17 a depicted individual who was a minor on the date of the disclosure
18 or threat to disclose, the time specified in subsection A of this
19 section shall not begin to run until the depicted individual attains
20 the age of majority.

21 SECTION 8. NEW LAW A new section of law to be codified
22 in the Oklahoma Statutes as Section 1128 of Title 12, unless there
23 is created a duplication in numbering, reads as follows:

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1 A. This act shall be construed to be consistent with the
2 Communications Decency Act of 1996, 47 U.S.C., Section 230.

3 B. This act may not be construed to alter the laws of this
4 state on sovereign immunity.

5 SECTION 9. NEW LAW A new section of law to be codified
6 in the Oklahoma Statutes as Section 1129 of Title 12, unless there
7 is created a duplication in numbering, reads as follows:

8 In applying and construing this uniform act, consideration shall
9 be given to the need to promote uniformity of the law with respect
10 to its subject matter among states that enact it.

11 SECTION 10. This act shall become effective November 1, 2026.

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